

| Session and Chapter.      | Short Title.                                  | Extent of Repeal.                                                                                                                             |
|---------------------------|-----------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|
| 14 & 15 Geo. 5.<br>c. 35. | The Housing (Financial Provisions) Act, 1924. | Section twelve and subsection (3) of section sixteen.<br>The Second Schedule so far as it amends section five of the Housing, &c., Act, 1923. |

## CHAPTER 16.

An Act to consolidate the enactments relating to town planning in England and Wales.

[9th April 1925.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) A town planning scheme may be made in accordance with the provisions of this Act as respects any land which is in course of development or appears likely to be used for building purposes, with the general object of securing proper sanitary conditions, amenity, and convenience in connection with the laying out and use of the land, and of any neighbouring lands : Town planning schemes.

Provided that, where a piece of land already built upon or a piece of land not likely to be used for building purposes is so situate with respect to any land likely to be used for building purposes that the general object of the scheme would be better secured by its inclusion in any town planning scheme made with respect to the last-mentioned land, the scheme may include such piece of land as aforesaid, and may provide for the demolition or alteration of any buildings thereon so far as may be necessary for carrying the scheme into effect.

(2) Where it appears to the Minister of Health (hereinafter referred to as the Minister) that on account of the special architectural, historic or artistic interest

attaching to a locality it is expedient that with a view to preserving the existing character and to protecting the existing features of the locality, a town planning scheme should be made with respect to any area comprising that locality, the Minister may, notwithstanding that the land or any part thereof is already developed, authorise a town planning scheme to be made with respect to that area prescribing the space about buildings, or limiting the number of buildings to be erected, or prescribing the height or character of buildings, and, subject as aforesaid, the provisions of this Act shall apply accordingly.

(3) The expression "land likely to be used for building purposes" shall include any land likely to be used as, or for the purpose of providing, open spaces, roads, streets, parks, pleasure or recreation grounds, or for the purpose of executing any work upon or under the land incidental to a town planning scheme, whether in the nature of a building work or not, and the decision of the Minister, whether land is likely to be used for building purposes or not, shall be final and conclusive.

Power of  
local  
authorities  
to prepare  
or adopt  
town  
planning  
schemes.

2.—(1) A local authority may by resolution decide—

- (a) to prepare a town planning scheme with reference to any land within, or in the neighbourhood of, their area in regard to which a scheme may be made under this Act; or
- (b) to adopt, with or without any modifications, any town planning scheme proposed by all or any of the owners of any land with respect to which the local authority are themselves by this Act authorised to prepare a scheme:

Provided that—

- (i) if any such resolution of a local authority extends to land not within the area of that local authority, the resolution shall not have effect until it is approved by the Minister, and the Minister may, in giving his approval, vary the extent of the land to be included within the area of the proposed town planning scheme; and
- (ii) where any local authorities are desirous of acting jointly in the preparation or adoption of a town planning scheme, they may concur

in appointing out of their respective bodies a joint committee for the purpose, and in conferring with or without restrictions on any such committee any powers which the appointing councils might exercise for the purpose, and the provisions of sections fifty-seven and fifty-eight of the Local Government Act, 1894, in regard to joint committees, shall, with the necessary modifications, apply to any joint committee so appointed.

53 & 57 Vict.  
c. 73.

(2) A town planning scheme prepared or adopted by a local authority shall not have effect unless it is approved by order of the Minister, and the Minister may refuse to approve any scheme except with such modifications and subject to such conditions as he thinks fit to impose.

(3) A town planning scheme, when approved by the Minister, shall have effect as if it were enacted in this Act.

(4) A town planning scheme may be varied or revoked by a subsequent scheme prepared or adopted and approved in accordance with this Act, or in manner provided by regulations made by the Minister under this Act, and the Minister, on the application of the responsible authority, or of any other person appearing to him to be interested, may by order revoke a town planning scheme if he thinks that under the special circumstances of the case the scheme should be so revoked.

3.—(1) The council of every borough or other urban district containing a population, according to the census taken in the year nineteen hundred and twenty-one, of more than twenty thousand shall, before the first day of January, nineteen hundred and twenty-nine, prepare and submit to the Minister a town planning scheme in respect of all land within the borough or urban district in respect of which a town planning scheme may be made under this Act.

Duty of  
certain  
councils  
to prepare  
town  
planning  
schemes.

(2) Without prejudice to the powers of the council under this Act, every scheme to which this section applies shall deal with such matters as may be determined by regulations to be made by the Minister.

(3) Every regulation so made shall be laid before both Houses of Parliament as soon as may be after it is made, and, if an address is presented by either House within twenty-one days on which that House has sat next after any such regulation is laid before it praying that the regulation may be annulled, His Majesty in Council may annul the regulation, but without prejudice to the validity of anything previously done thereunder.

Develop-  
ment of  
estates  
pending  
preparation  
of town  
planning  
schemes.

4. The Minister may by special or general order provide that where a resolution to prepare or adopt a town planning scheme has been passed, or where before the thirty-first day of July nineteen hundred and nineteen, or by virtue of any of the provisions of this Act, the preparation, adoption or making of a town planning scheme has been authorised, the development of estates and building operations may be permitted to proceed pending the preparation, adoption or making and approval of the town planning scheme, subject to such conditions as may be prescribed by the order.

Contents  
of town  
planning  
schemes.

5.—(1) The Minister may prescribe a set of general provisions (or separate sets of general provisions adapted for areas of any special character) for carrying out the general objects of town planning schemes, and in particular for dealing with the matters set out in the First Schedule to this Act, and the general provisions, or set of general provisions appropriate to the area for which a town planning scheme is made, shall take effect as part of every scheme, except so far as provision is made by the scheme as approved by the Minister for the variation or exclusion of any of those provisions.

(2) Special provisions shall in addition be inserted in every town planning scheme—

- (a) defining in such manner as may be prescribed by regulations under this Act the area to which the scheme is to apply; and
- (b) defining the authority who are to be responsible for enforcing the observance of the scheme, and for the execution of any works which under the scheme or this Act are to be executed by a local authority (in this Act referred to as the responsible authority); and
- (c) providing for any matters which may be dealt with by general provisions, and otherwise supplementing, excluding, or varying the general provisions, and also for dealing with any special

circumstances or contingencies for which adequate provision is not made by the general provisions; and

- (d) providing for the suspension, so far as necessary for the proper carrying out of the scheme, of any statutory enactments, byelaws, regulations, or other provisions, under whatever authority made, which are in operation in the area included in the scheme.

(3) Where land included in a town planning scheme is in the area of more than one local authority, or is in the area of a local authority by whom the scheme was not prepared, the responsible authority may be one of those local authorities, or for certain purposes of the scheme one local authority and for certain purposes another local authority, or a joint body constituted specially for the purpose by the scheme, and all necessary provisions may be made by the scheme for constituting the joint body and giving them the necessary powers and duties :

Provided that, except with the consent of the London County Council, no other local authority shall, as respects any land in the administrative county of London, prepare or be responsible for enforcing the observance of a town planning scheme under this Act, or for the execution of any works which under the scheme or this Act are to be executed by a local authority.

(4) All general provisions made under this Act shall be laid as soon as may be before Parliament, and the Rules Publication Act, 1893, shall apply to such provisions as if they were statutory rules within the meaning of section one of that Act. 56 & 57 Vict. c. 66.

6.—(1) The Minister may make regulations for regulating generally the procedure to be adopted— Procedure regulations of the Minister.

- (a) with respect to the preparation or adoption of a town planning scheme; and
- (b) with respect to obtaining the approval of the Minister to a scheme so prepared or adopted; and
- (c) with respect to the variation or revocation of a scheme; and

- (d) with respect to any inquiries, reports, notices, or other matters required in connection with the preparation or adoption or the approval of the scheme or preliminary thereto, or in relation to the carrying out of the scheme or enforcing the observance of the provisions thereof, or the variation or revocation of the scheme.
- (2) Provision shall be made by those regulations—
  - (a) for securing co-operation on the part of the local authority with the owners and other persons interested in the land proposed to be included in the scheme, by such means as may be provided by the regulations;
  - (b) for securing that notice of the proposal to prepare or adopt a scheme should be given at the earliest stage possible to any council interested in the land;
  - (c) for securing that the council of the county in which any land proposed to be included in a scheme is situated shall be furnished with a notice of any proposal to prepare or adopt such a scheme and with a copy of the draft scheme before the scheme is made, and shall be entitled to be heard at any public local inquiry held by the Minister in regard to the scheme;
  - (d) for securing that a local authority after passing a resolution to prepare or adopt a scheme shall proceed with all reasonable speed with the preparation or adoption of the scheme, and shall comply with any regulations as to steps to be taken for that purpose, including provisions enabling the Minister in the case of default or dilatoriness on the part of the local authority to act in the place and at the expense of the local authority; and
  - (e) for dealing with the other matters mentioned in the Second Schedule to this Act.

Power to  
enforce  
scheme.

7.—(1) The responsible authority may at any time, after giving such notice as may be provided by a town

planning scheme and in accordance with the provisions of the scheme—

- (a) remove, pull down, or alter any building or other work in the area included in the scheme which is such as to contravene the scheme, or in the erection or carrying out of which any provision of the scheme has not been complied with; or
- (b) execute any work which it is the duty of any person to execute under the scheme in any case where it appears to the authority that delay in the execution of the work would prejudice the efficient operation of the scheme.

(2) Any expenses incurred by a responsible authority under this section may be recovered from the persons in default in such manner and subject to such conditions as may be provided by the scheme.

(3) If any question arises whether any building or work contravenes a town planning scheme, or whether any provision of a town planning scheme is not complied with in the erection or carrying out of any such building or work, that question shall be referred to the Minister, and shall, unless the parties otherwise agree, be determined by the Minister as arbitrator, and the decision of the Minister shall be final and conclusive.

8.—(1) The responsible authority may, for the purpose of a town planning scheme, purchase any land comprised in such scheme by agreement, or be authorised to purchase any such land compulsorily in manner hereinafter provided. Acquisition of land comprised in a scheme.

(2) Land may be purchased by agreement for the purposes aforesaid in like manner as if those purposes were purposes of the Public Health Act, 1875, and sections one hundred and seventy-five to one hundred and seventy-eight of that Act so far as they relate to purchase of land by agreement shall apply accordingly, and shall for the purposes of this Act extend to London as if the London County Council were a local authority in the said sections mentioned. 38 & 39 Vict. c. 55.

(3) The responsible authority may be authorised to purchase land compulsorily for the purposes aforesaid by

means of an order submitted to the Minister, and confirmed by him in accordance with Part I. of the Third Schedule to this Act.

(4) The responsible authority may, with the consent of and subject to any conditions imposed by the Minister, acquire by agreement land comprised in a town planning scheme, notwithstanding that the land is not immediately required for the purposes of the scheme.

(5) Where land included within the area of a local authority is comprised in a town planning scheme, and the local authority are not the responsible authority, the local authority may purchase or be authorised to purchase that land in the same manner as the responsible authority.

(6) The powers of acquiring land under this section shall be subject to the restrictions contained in Part II. of the said Schedule.

Payment of purchase or compensation money (which would otherwise be paid into court) on direction of Minister.

**9.—**(1) Any purchase money or compensation payable in pursuance of this Act by a responsible or other local authority in respect of any land, or interest of another local authority which would, but for this section, be paid into court in manner provided by the Lands Clauses Acts may, if the Minister consents, instead of being paid into court, be paid and applied as the Minister may determine.

(2) Any such decision of the Minister as to the payment and application of any such purchase money or compensation shall be final and conclusive.

Compensation in respect of property injuriously affected by scheme, &c.

**10.—**(1) Any person whose property is injuriously affected by the making of a town planning scheme shall, if he makes a claim for the purpose within the time (if any) limited by the scheme, not being less than three months after the date when notice of the approval of the scheme is published in the manner prescribed by regulations made by the Minister, be entitled to obtain compensation in respect thereof from the responsible authority.

(2) A person shall not be entitled to obtain compensation under this section on account of any building erected on, or contract made or other thing done with respect to, land included in a scheme, after the date of the resolution of the local authority to prepare or adopt the scheme, or after the date when such resolution



takes effect, or after the date when the Minister has authorised a scheme to be made by virtue of any power conferred on him for that purpose by this Act (as the case may be), or, in cases where before the thirty-first day of July nineteen hundred and nineteen the preparation or adoption of a town planning scheme was authorised, after the date on which the application for authority to prepare or adopt the scheme was made, or after such other time as the Minister may fix for the purpose:

Provided that—

- (a) this provision shall not apply as respects any work done before the date of the approval of the scheme for the purpose of finishing a building begun or of carrying out a contract entered into before such date or other time as aforesaid;
- (b) this provision shall not apply as respects any building erected, contract made, or other thing done in accordance with a permission granted in pursuance of an order of the Minister allowing the development of estates and building operations to proceed pending the preparation, adoption or making and approval of the scheme, and the carrying out of works so permitted shall not prejudice any claim of any person to compensation in respect of property injuriously affected by the making of the scheme;
- (c) after any enactment providing for the registration of local land charges comes into force this provision shall not affect a purchaser of the land unless the resolution, if required to be registered under such enactment as a local land charge, has been so registered.

(3) Where, by the making of any town planning scheme, any property is increased in value, the responsible authority, if they make a claim for the purpose within the time (if any) limited by the scheme (not being less than three months after the date when notice of the approval of the scheme is first published in the manner prescribed by regulations made by the Minister), shall be entitled to recover from any person whose property is so increased in value one-half of the amount of that increase.

9 & 10 Geo. 5.  
c. 57.

(4) Any question as to whether any property is injuriously affected or increased in value within the meaning of this section, and as to the amount and manner of payment (whether by instalments or otherwise) of the sum which is to be paid as compensation under this section or which the responsible authority are entitled to recover from a person whose property is increased in value, shall be determined by arbitration under and in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919, unless the parties agree on some other method of determination.

(5) Any amount due under this section as compensation to a person aggrieved from a responsible authority, or to a responsible authority from a person whose property is increased in value, may be recovered summarily as a civil debt.

(6) Where a town planning scheme is revoked by an order of the Minister under this Act, any person who has incurred expenditure for the purpose of complying with the scheme shall be entitled to compensation in accordance with this section in so far as any such expenditure is rendered abortive by reason of the revocation of the scheme.

(7) For the purposes of this section "purchaser" means any person (including a mortgagee or lessee) who for valuable consideration takes any interest in land.

Exclusion or  
limitation  
of compen-  
sation in  
certain  
cases.

**11.—**(1) Where property is alleged to be injuriously affected by reason of any provisions contained in a town planning scheme, no compensation shall be paid in respect thereof if or so far as the provisions are also contained in any public general or local Act, or Order having the force of an Act of Parliament, in force in the area, or are such as would have been enforceable if they had been contained in byelaws made by the local authority.

(2) Property shall not be deemed to be injuriously affected by reason of the making of any provisions inserted in a town planning scheme, which prescribe the space about buildings or limit the number of buildings to be erected, or prescribe the height or character of buildings, and which the Minister, having regard to the nature and situation of the land affected by the provisions, considers reasonable for the purpose.

(3) Where a person is entitled to compensation under this Act in respect of any matter or thing, and he would be entitled to compensation in respect of the same matter or thing under any other enactment, he shall not be entitled to compensation in respect of that matter or thing both under this Act and under that other enactment, and shall not be entitled to any greater compensation under this Act than he would be entitled to under the other enactment.

**12.—(1).** The responsible authority may, at any time within one month after the date of an award of compensation in respect of property injuriously affected by the making of a town planning scheme, give notice to the owner of that property of their intention to withdraw or modify all or any of the provisions of the scheme which gave rise to the claim for compensation.

Notice to  
withdraw  
or modify  
provisions  
of scheme

(2) Where such notice has been given, the responsible authority shall, within three months from the date of the notice, submit for the Minister's approval a varying scheme carrying into effect such withdrawal or modification as aforesaid, and upon approval by the Minister of the varying scheme, whether with or without modification, and payment by the authority of the owner's costs of and in connection with the arbitration, the award of the arbitrator shall be discharged without prejudice, however, to the right of the owner to make a further claim for compensation in respect of the said scheme as varied.

(3) No award of compensation in respect of property injuriously affected by the making of a town planning scheme shall be enforceable within one month from the date thereof, or, if notice has been given by the authority under the preceding subsection, pending the Minister's decision on the varying scheme.

**13.—(1)** Where the Minister is satisfied, after holding a public local inquiry, that a town planning scheme ought to be made by a local authority as respects any land in regard to which a town planning scheme may be made under this Act, the Minister may by order require the local authority to prepare and submit for his approval such a scheme, and, if the scheme is approved by the Minister, to do all things necessary for enforcing

Power of  
Minister to  
require  
preparation  
of town  
planning  
scheme.

the observance of the scheme or any provisions thereof effectively, and for executing any works which, under the scheme or under this Act, the authority are required to execute.

(2) Any order made by the Minister under this section shall have the same effect as a resolution of the local authority deciding to prepare a town planning scheme in respect of the area in regard to which the order is made.

(3) If the local authority fail to prepare a scheme to the satisfaction of the Minister within such time as may be prescribed by the order, or to enforce the observance of the scheme or any provisions thereof effectively, or to execute any such works as aforesaid, the Minister may himself act, or in the case of a borough or other urban district the population of which is less than twenty thousand, or of a rural district, may, if the Minister thinks fit, by order, empower the county council to act in the place and at the expense of the local authority.

Power of  
Minister in  
case of  
default of  
local  
authority to  
adopt or  
execute  
town  
planning  
scheme.

14.—(1) If the Minister is satisfied on any representation, after holding a public local inquiry, that a local authority have failed to adopt any scheme proposed by owners of any land in a case where the scheme ought to be adopted, the Minister may order the local authority to adopt the scheme proposed, or in lieu of making such an order as aforesaid, may approve the proposed scheme, subject to such modifications or conditions, if any, as the Minister thinks fit, and thereupon the scheme shall have effect as if it had been adopted by the local authority and approved by the Minister.

(2) If the Minister is satisfied on any representation, after holding a public local inquiry, that a responsible authority have failed to enforce effectively the observance of a scheme which has been approved, or any provisions thereof, or to execute any works which under the scheme or this Act the authority are required to execute, the Minister may order that authority to do all things necessary for enforcing the observance of the scheme or any provisions thereof effectively, or for executing any works which under the scheme or this Act the authority are required to execute.

(3) Any order under this section may be enforced by mandamus.

15.—(1) Where the Minister has refused to approve a town planning scheme prepared or adopted by a local authority, except with certain modifications or subject to certain conditions, and the Minister on any representation is satisfied after holding a public local inquiry that the local authority have unreasonably refused to consent to the modifications or conditions so imposed by the Minister, the Minister may order the local authority to consent to the modifications or conditions so imposed.

Power of Minister to order local authority to consent to modifications and conditions.

(2) An order under this section may be enforced by mandamus.

16.—(1) Where the Minister is satisfied that any local authority (including a county council) or two or more local authorities jointly, or any authorised association, are prepared to purchase and develop, in accordance with a scheme approved by the Minister—

Acquisition of land for purpose of garden cities.

(a) any land as a garden city (including a garden suburb or garden village);

(b) any land in regard to which a town planning scheme may be made;

and have funds available for the purpose, he may, with the consent of the Treasury and after consultation with the Board of Trade, the Minister of Agriculture and Fisheries, and the Minister of Transport, acquire that land on behalf of the authority or association either by compulsion or by agreement in any case in which it appears to him necessary or expedient so to do for the purpose of securing the development of the land as aforesaid, and may do all such things as may be necessary to vest the land so acquired in the local authority or association.

(2) The provisions of this Act relating to the powers of a local authority to acquire land for the purposes of a town planning scheme, shall apply for the purpose of the acquisition of land by the Minister under this section, and the Minister in exercising his powers of acquiring land under this section shall be subject to the same conditions as are applicable to the acquisition of land under this Act by a local authority :

Provided that, in the case of an order for the compulsory acquisition of land on behalf of an authorised association, the order shall be laid before each House of Parliament and shall not be confirmed by the Minister unless and until both Houses by resolution have approved the order, nor, if any modifications are agreed to by both Houses, otherwise than as so modified.

(3) A local authority shall have power to acquire land for the purposes of a scheme approved by the Minister under this section, and to develop any land so acquired in accordance with the scheme.

(4) Subject to such conditions as the Treasury may prescribe and up to an amount approved by the Treasury, the Public Works Loan Commissioners may advance by way of loan to any authorised association such money as the association may require for the purpose of developing the garden city in accordance with a scheme approved by the Minister under this section, and the provisions of the Housing Act, 1925, with respect to loans by those Commissioners to a public utility society for the purpose of the purchase and development of land under Part III. of that Act shall, subject to the provisions of this section, apply to advances made in pursuance of this subsection.

15 Geo. 5.  
c. 14.

The power to make advances under this subsection shall be exercised during such a period as the Treasury may prescribe.

(5) In this section "authorised association" means any society, company or body of persons approved by the Minister whose objects include the promotion, formation, or management of garden cities (including garden suburbs and garden villages), and the erection, improvement or management of buildings for the working classes and others, which does not trade for profit or whose constitution forbids the issue of any share or loan capital with interest or dividend exceeding the rate for the time being prescribed by the Treasury; and any authorised association shall have power, notwithstanding anything in its rules or constitution prohibiting the payment of interest on loan capital at a rate exceeding six per centum per annum, to raise money on loan at a rate of interest not exceeding the rate for the time being prescribed by the Treasury.

**17.** Where the Minister is authorised by this Act or any scheme made under this Act or any enactment thereby repealed to determine any matter, it shall, except as otherwise expressly provided by this Act, be at his option to determine the matter as arbitrator or otherwise, and, if he elects or is required to determine the matter as arbitrator, the provisions of the Regulation of Railways Act, 1868, respecting arbitrations by the Board of Trade, and the enactments amending those provisions, shall apply as if they were herein re-enacted and in terms made applicable to the Minister and the determination of the matters aforesaid.

Determina-  
tion of  
matters by  
Minister.

31 & 32 Vict.  
c. 119.

**18.**—(1) For the purposes of the execution of his powers and duties under this Act, the Minister may cause such local inquiries to be held as he may think fit, and the costs incurred in relation to any such local inquiry shall be paid by the authorities and persons concerned in the inquiry, or by such of them and in such proportions as the Minister may direct, and the Minister may certify the amount of the costs incurred, and any sum so certified and directed by the Minister to be paid by any authority or person shall be a debt to the Crown from such authority or person.

Local  
inquiries.

(2) Sections two hundred and ninety-three to two hundred and ninety-six and section two hundred and ninety-eight of the Public Health Act, 1875, shall apply for the purpose of any order to be made by the Minister or any local inquiry which he may cause to be held in pursuance of this Act.

**19.**—(1) Where any land proposed to be included in a town planning scheme, or any land proposed to be acquired under this Act, is situate within the prescribed distance from any of the royal palaces or parks, the local authority shall, before preparing the scheme or acquiring the land, communicate with the Commissioners of Works, and the Minister shall, before confirming the scheme or authorising the acquisition of the land or the raising of any loan for the purpose, take into consideration any recommendations he may have received from the Commissioners of Works with reference to the proposal.

Provisions  
as to land  
in neigh-  
bourhood of  
royal  
palaces and  
parks.

(2) For the purposes of this section, "prescribed" means prescribed by regulations made by the Minister after consultation with the Commissioners of Works.

Definition  
of local  
authority,  
and  
expenses.

**20.**—(1) For the purposes of this Act, the expression “local authority” means—

- (a) as respects the administrative county of London the London County Council; and
- (b) elsewhere the council of the borough or urban or rural district.

(2) Any expenses incurred by the London County Council under this Act or any scheme made under this Act or any enactment thereby repealed, including the cost of the preparation or adoption of a scheme, shall be defrayed out of the general county rate and any money may be borrowed by the Council in the same manner as money may be borrowed for general county purposes.

(3) Any expenses incurred by the council of a borough or urban or rural district under this Act, or any scheme made under this Act or any enactment thereby repealed, shall be defrayed as expenses of the council under the Public Health Acts, 1875 to 1907, and the authority may borrow, for the purposes of this Act, or any such scheme, including the cost of the preparation or adoption of a scheme, in the same manner and subject to the same provisions as they may borrow for the purposes of the Public Health Acts, 1875 to 1907.

(4) Money borrowed for the purposes of this Act, or any scheme made under this Act or any enactment thereby repealed, shall not be reckoned as part of the debt of a borough or urban district for the purposes of the limitation on borrowing under subsections (2) and (3) of section two hundred and thirty-four of the Public Health Act, 1875.

Repeals

**21.**—(1) The enactments mentioned in the Fourth Schedule to this Act are, so far as they apply to England and Wales, hereby repealed to the extent specified in the third column of that schedule :

Provided that—

- (a) nothing in this repeal shall affect any scheme, order or regulation made, or notice or approval given under any enactment hereby repealed, but any such scheme, order, regulation, approval or notice shall have effect



as if made or given under the corresponding provision of this Act and may be amended, varied, repealed, revoked, or enforced accordingly;

- (b) any document referring to any Act or enactment so repealed shall be construed as referring to this Act or the corresponding enactment in this Act.

(2) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals. 52 & 53 Vict.  
c. 63.

22.—(1) This Act may be cited as the Town Planning Act, 1925. Short title,  
commence-  
ment and  
extent.

(2) This Act shall come into operation on the first day of July, nineteen hundred and twenty-five.

(3) This Act shall not extend to Scotland or Northern Ireland.

## SCHEDULES.

### FIRST SCHEDULE.

Section 5.

#### MATTERS TO BE DEALT WITH BY GENERAL PROVISIONS PRESCRIBED BY THE MINISTER.

1. Streets, roads, and other ways, and stopping up or diversion of existing highways.
2. Buildings, structures, and erections.
3. Open spaces, private and public.
4. The preservation of objects of historical interest or natural beauty.
5. Sewerage, drainage, and sewage disposal.
6. Lighting.
7. Water supply.
8. Ancillary or consequential works.
9. Extinction or variation of private rights of way and other easements.
10. Dealing with or disposal of land acquired by the responsible authority or by a local authority.

1ST SCH.

—cont.

11. Power of entry and inspection.

12. Power of the responsible authority to remove, alter, or demolish any obstructive work.

13. Power of the responsible authority to make agreements with owners, and of owners to make agreements with one another.

14. Power of the responsible authority or a local authority to accept any money or property for the furtherance of the objects of any town planning scheme, and provision for regulating the administration of any such money or property and for the exemption of any assurance with respect to money or property so accepted from enrolment under the Mortmain and Charitable Uses Act, 1888.

15. Application with the necessary modifications and adaptations of statutory enactments.

16. Carrying out and supplementing the provisions of this Act for enforcing schemes.

17. Limitation of time for operation of scheme.

18. Co-operation of the responsible authority with the owners of land included in the scheme or other persons interested.

19. Charging on the inheritance of any land the value of which is increased by the operation of a town planning scheme the sum required to be paid in respect of that increase, and for that purpose applying, with the necessary adaptations, the provisions of any enactments dealing with charges for improvements of land.

## Section 6.

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**SECOND SCHEDULE.**

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**MATTERS TO BE DEALT WITH BY REGULATIONS OF THE MINISTER.**

1. Procedure anterior to the preparation or adoption of scheme :—

(a) Preparation and deposit of plans.

(b) Publication of notices.

2. Procedure during, on, and after the preparation or adoption and before the approval of the scheme :—

(a) Submission to the Minister of the proposed scheme, with plans and estimates.

(b) Notice of submission of proposed scheme to the Minister.

(c) Hearing of objections and representations by persons affected, including persons representing architectural or

archæological societies or otherwise interested in the amenity of the proposed scheme. 2ND SCH.  
—cont.

(d) Publication of notice of intention to approve scheme and the lodging of objections thereto.

3. Procedure after the approval of the scheme :—

(a) Notice to be given of approval of scheme.

(b) Inquiries and reports as to the beginning and the progress and completion of works, and other action under the scheme.

4. Duty, at any stage, of the local authority to publish or deposit for inspection any scheme or proposed scheme, and the plans relating thereto, and to give information to persons affected with reference to any such scheme or proposed scheme.

5. The details to be specified in plans, including, wherever the circumstances so require, the restrictions on the number of buildings which may be erected on each acre, and the height and character of those buildings.

### THIRD SCHEDULE.

Section 8.

#### PART I.

#### PROVISIONS AS TO THE COMPULSORY ACQUISITION OF LAND.

1. Where a local authority propose to purchase land compulsorily, the local authority may submit to the Minister an order putting in force as respects the land specified in the order the provisions of the Lands Clauses Acts with respect to the purchase and taking of land otherwise than by agreement.

2. An order under this schedule shall be of no force unless and until it is confirmed by the Minister, and the Minister may confirm the order either without modification or subject to such modifications as he thinks fit, and an order when so confirmed shall, save as otherwise expressly provided by this schedule, become final and have effect as if enacted in this Act; and the confirmation by the Minister shall be conclusive evidence that the requirements of this Act have been complied with, and that the order has been duly made and is within the powers of this Act.

3. The order shall be in the form prescribed by the Minister, and shall contain such provisions as the Minister may prescribe for the purpose of carrying the order into effect, and of protecting the local authority and the persons interested in the land, and shall incorporate, subject to the necessary adaptations—

(a) the Lands Clauses Acts (except section one hundred and twenty-seven of the Lands Clauses Consolidation

3RD SCH.  
—cont.

Act, 1845) as modified by the Acquisition of Land (Assessment of Compensation) Act, 1919; and

(b) sections seventy-seven to eighty-five of the Railways Clauses Consolidation Act, 1845.

4. The order shall be published by the local authority in the manner prescribed by the Minister, and such notice shall be given both in the locality in which the land is proposed to be acquired, and to the owners, lessees, and occupiers of that land as may be prescribed by the Minister.

5. If within such period as may be prescribed by the Minister no objection to the order has been presented to the Minister by a person interested in the land, or if every such objection has been withdrawn, the Minister shall, without further enquiry, confirm the order, unless he is of opinion that the land is unsuited for the purpose for which it is proposed to be acquired, but, if such an objection has been presented and has not been withdrawn, the Minister shall forthwith cause a public inquiry to be held in the locality in which the land is proposed to be acquired, and the local authority and all persons interested in the land and such other persons as the person holding the inquiry in his discretion thinks fit to allow shall be permitted to appear and be heard at the inquiry, and the Minister shall, before confirming the order, duly consider the report of the person by whom a public inquiry is held.

6. In construing for the purposes of this schedule or any order made thereunder, any enactment incorporated with the order, this Act together with the order shall be deemed to be the special Act, and the local authority shall be deemed to be the promoters of the undertaking.

7. Where the land is glebe land or other land belonging to an ecclesiastical benefice, the order shall provide that sums agreed upon or awarded for the purchase of the land, or to be paid by way of compensation for the damage to be sustained by the owner by reason of severance or other injury affecting the land, shall not be paid as directed by the Lands Clauses Acts, but shall be paid to the Ecclesiastical Commissioners to be applied by them as money paid to them upon a sale, under the provisions of the Ecclesiastical Leasing Acts, of land belonging to a benefice.

8. The reference to sections seventy-eight to eighty-five of the Railways Clauses Consolidation Act, 1845, shall be construed as a reference to those sections as originally enacted and not as a reference to the provisions which by virtue of the Mines (Working Facilities and Support) Act, 1923, are in certain cases to be substituted for those sections.

## PART II.

3RD SCH.  
—*cont.*

## RESTRICTIONS ON ACQUISITION OF LAND.

1. Nothing in this Act shall authorise the acquisition for the purposes of any town planning scheme of any land which is the site of an ancient monument or other object of archæological interest.

2. Nothing in this Act shall authorise the compulsory acquisition of any land which is the property of any local authority or has been acquired by any corporation or company for the purposes of a railway, dock, canal, water or other public undertaking, or which, at the date of the order authorising the compulsory acquisition of the land, forms part of any park, garden, or pleasure ground, or is otherwise required for the amenity or convenience of any house.

3.—(1) Where any scheme or order under this Act authorises the acquisition or appropriation of any land forming part of any common, open space, or allotment, the scheme or order, so far as it relates to the acquisition or appropriation of such land, shall be provisional only, and shall not have effect unless and until it is confirmed by Parliament, except where the scheme or order provides for giving in exchange for such land other land, not being less in area, certified by the Minister after consultation with the Minister of Agriculture and Fisheries to be equally advantageous to the persons, if any, entitled to commonable or other rights and to the public.

(2) Before giving any such certificate the Minister shall give public notice of the proposed exchange, and shall afford opportunities to all persons interested to make representations and objections in relation thereto, and shall, if necessary, hold a local inquiry on the subject.

(3) Where any such scheme or order authorises such an exchange, the scheme or order shall provide for vesting the land given in exchange in the persons in whom the common or open space was vested, subject to the same rights, trusts, and incidents as attached to the common or open space, and for discharging the part of the common, open space, or allotment acquired or appropriated from all rights, trusts, and incidents to which it was previously subject.

(4) For the purposes of this Part of this Schedule the expression “common” includes any land subject to be enclosed under the Inclosure Acts, 1845 to 1882, and any town or village

3RD SCH.  
—cont.

green; the expression “open space” means any land laid out as a public garden or used for the purposes of public recreation, and any disused burial ground; and the expression “allotment” means any allotment set out as a fuel allotment or a field garden allotment under an Inclosure Act.

Section 21.

## FOURTH SCHEDULE.

### ENACTMENTS REPEALED.

| Session and Chapter.      | Short Title.                               | Extent of Repeal.                                                                                              |
|---------------------------|--------------------------------------------|----------------------------------------------------------------------------------------------------------------|
| 9 Edw. 7. c. 44.          | The Housing, Town Planning, &c. Act, 1909. | Part II.<br>Part IV. so far as it relates to town planning.<br>The Fourth Schedule.<br>The Fifth Schedule.     |
| 9 & 10 Geo. 5.<br>c. 35.  | The Housing, Town Planning, &c. Act, 1919. | Part II.<br>The Third Schedule.                                                                                |
| 9 & 10 Geo. 5.<br>c. 99.  | The Housing (Additional Powers) Act, 1919. | Section ten.                                                                                                   |
| 11 & 12 Geo. 5.<br>c. 19. | The Housing Act, 1921.                     | Section six so far as unrepealed by the Housing Act, 1924.<br>Section seven.                                   |
| 13 & 14 Geo. 5.<br>c. 24. | The Housing, &c. Act, 1923.                | Part. II.<br>The Second Schedule so far as it amends section 59 of the Housing, Town Planning, &c., Act, 1909. |